

What You Should Know about Open Source Licensing

FOSS is intellectual property and therefore is an asset that should be protected. The owner of the FOSS has a right to decide and control how it can be used by other developers and the public, in general. Various types of FOSS licences are used by software developers.



Many FOSS developers and designers want to release their work as open source projects. They also want to get recognised for their work. The open source community is vibrant because the essence of it is preserved through multiple iterations of the code. But there is a lot of confusion out there about what licensing means exactly. Licences fall in the domain of the law, which means matters related to it quickly become relatively complex. This article can't be considered hard core legal advice, but you may find it useful when talking with your lawyer or, if necessary, coming to a decision without the help of a lawyer.

Differences between free software and open source software

To understand open source licensing, we need to understand the difference between free software and open source software. The term, FOSS or Free and Open Source Software shows that both are different entities. Richard Stallman and others started the Free Software Movement. The definition

of free software is focused on the freedom to share code with your neighbour. It deals with the moral or ethical part of source code sharing. The point to be noted here is that not all the licences approved by open source proponents meet with the approval of free software advocates.

The open source philosophy is based on pragmatism rather than ideology. It promotes the notion that "...advocacy targeted at businesses should emphasise the technical merits and profitability of open (free) development models, rather than talking about ethical or political issues" (The Open Source Initiative; www.opensource.org). Followers of this movement prefer to base their arguments on the economic and technical merits of making source code freely available, rather than the moral and ethical principles that drive the Free Software Movement.

So, coming back to licences again, the Free Software Foundation uses a specific licence under which it provides software. The Open Source Initiative (OSI) seeks support for all open source licences, including the one from the Free